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U.S. DISTRICT COURT
N.D. OF ALABAMA

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF ALABAMA
SOUTHERN DIVISION

THE SOUTHEASTERN CONFERENCE, an Alabama unincorporated association,

Plaintiff,

v.

LOUISIANA STATE UNIVERSITY; BOARD OF SUPERVISORS OF LOUISIANA STATE UNIVERSITY AND AGRICULTURAL AND MECHANICAL COLLEGE; WADE ROUSSE, in his official capacity as President of Louisiana State University; **VERGE AUSBERRY**, in his official capacity as Vice President and Director of Athletics of Louisiana State University; and **LANE KIFFIN**, in his official capacity as Head Football Coach of Louisiana State University,

Defendants.

Case No.:

COMPLAINT

Plaintiff the Southeastern Conference ("SEC" or the "Conference") brings this action seeking declaratory and injunctive relief against Defendants Louisiana State University ("LSU"), the Board of Supervisors of Louisiana State University and Agricultural and Mechanical College, Wade Rousse, in his official capacity as President of LSU, Verge Ausberry, in his official capacity as Vice President and Director of Athletics of LSU, and Lane Kiffin, in his official capacity as Head Football Coach of LSU.

INTRODUCTION

1 For more than ninety years, the Southeastern Conference has stood at the intersection of higher education and elite athletic competition. Founded in 1933 by university presidents who believed that athletics should promote and serve educational values, the SEC is now the nation's premier intercollegiate athletic conference.

2 Today, the SEC is a sixteen-member association. The Presidents and Chancellors of the SEC's member institutions have governed together across generations, operating under a

4. Among the most fundamental of those rules are the longstanding provisions that prohibit individuals who have entered a professional draft, signed professional contracts, or been rostered on a professional athletics team from returning to compete in college athletics (the "Professionalism Rules"). These rules are built upon an essential principle: college athletics is reserved for students who are actively pursuing an education while competing for their universities. The Professionalism Rules preserve competitive fairness, protect opportunities for high school students and current college athletes, and maintain the distinction between college and professional sports. That distinction is critical to the SEC's member institutions, their Presidents and Chancellors, and their fans.

5. This case arises from Defendants' violation of the SEC's First Amendment right of expressive association.

6. Specifically, Defendants waged a deliberate and coordinated campaign to recruit professional athletes to play football for LSU during the 2026-27 season, including players who had signed NFL contracts with the Cleveland Browns, New Orleans Saints, and Tampa Bay Buccaneers. Numerous reports have shown that at least two of these professional athletes are on campus and actively practicing with LSU's football team. Defendants have also expressed their unequivocal intent to place those athletes on LSU's official football roster and allow them to participate in football games during the upcoming season.

set of shared rules that have shaped the athletic and educational paths of thousands of student-athletes and provided the competitive integrity and fair competition necessary for the SEC to thrive. Those rules are not fine print. They are the governing framework that keeps college sports unique, protects opportunities for high school and college student-athletes, and preserves competitive equity and fair competition.

3 The SEC has endured and thrived for nearly a century because its members have adhered to that common set of rules, which each member institution, and every coach at those institutions, has agreed to follow.

4 Among the most fundamental of those rules are the longstanding provisions that prohibit individuals who have entered a professional draft, signed professional contracts, or been rostered on a professional athletics team from returning to compete in college athletics (the "Professionalism Rules"). These rules are built upon an essential principle: college athletics is reserved for students who are actively pursuing an education while competing for their universities.

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6 Specifically, Defendants waged a deliberate and coordinated campaign to recruit professional athletes to play football for LSU during the 2026-27 season, including players who had signed NFL contracts with the Cleveland Browns, New Orleans Saints, and Tampa Bay Buccaneers. Numerous reports have shown that at least two of these professional athletes are on campus and actively practicing with LSU's football team.

7 Every SEC member institution—including LSU—has affirmed that individuals who choose to leave college athletics, sign professional playing contracts, and compete professionally should not thereafter return to college competition.

8 The SEC brings this action to vindicate its First Amendment right of expressive association, i.e. its right not to be forced to associate its competitions, brand, and championships with conduct that it has expressly condemned since the SEC's founding. The SEC also seeks

declaratory and injunctive relief to vindicate the SEC's right to disassociate from conduct that directly undermines the SEC's organizational purpose and core values.

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9 The SEC does not bring this action to declare any student-athlete ineligible or to prevent any student-athlete from participating in any athletic competition. This action is directed solely at the member institution and athletic department personnel that have violated the SEC's rights under the First Amendment.

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10 Plaintiff the Southeastern Conference is the nation's premier intercollegiate athletic conference. Founded in 1933, it is an unincorporated nonprofit association organized under Alabama law and headquartered at 2201 Richard Arrington Jr. Boulevard North, Birmingham, Alabama 35203.

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11 The SEC has sixteen member institutions, fifteen of which are state universities: the University of Alabama, Auburn University, the University of Arkansas, the University of Florida, the University of Georgia, the University of Kentucky, Louisiana State University, the University of Mississippi, Mississippi State University, the University of Missouri, the University of Oklahoma, the University of South Carolina, the University of Tennessee, Texas A&M University, the University of Texas, and Vanderbilt University (the only private institution).

11. Plaintiff the Southeastern Conference is the nation's premier intercollegiate athletic conference. Founded in 1933, it is an unincorporated nonprofit association organized under Alabama law and headquartered at 2201 Richard Arrington Jr. Boulevard North, Birmingham, Alabama 35203.

12 Defendant Louisiana State University is a public university located in Baton Rouge, Louisiana and organized under the laws of the State of Louisiana. LSU has been a member of the SEC since the Conference's founding in 1933 and is bound by the Conference's Constitution and Bylaws.

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13 Defendant Wade Rousse is the President of Louisiana State University. He is sued only in his official capacity.

14 Defendant Verge Ausberry is the Vice President and Director of Athletics of Louisiana State University. He is responsible for the development, management, and supervision of LSU's athletics program. He is sued only in his official capacity.

25. Defendant Ausberry regularly attends meetings of the SEC's Athletic Directors, including in-person meetings in this District.

26. Defendant Kiffin regularly attends meetings of the SEC's head football coaches and has attended an in-person meeting in this District. Defendant Kiffin has also appeared in this District for intercollegiate competitions against another SEC member institution located in this District, the University of Alabama.

FACTUAL BACKGROUND

The SEC's Mission and Governance Structure

27. The SEC was founded on the principle that intercollegiate athletics serves an educational purpose. The Conference aims to facilitate and assist its member institutions in maintaining intercollegiate athletic programs compatible with the highest standards of education and competitive sports.

28. From its founding, the SEC's governance has rested in the hands of its member institutions. Under Article 4 of the SEC Constitution, the Presidents and Chancellors of those institutions serve as the Conference's Chief Executive Officers ("CEOs"), with plenary power over all Conference affairs. The role of the Presidents and Chancellors as CEOs is equivalent to the role served by directors serving on a corporation's board of directors. This structure reflects a deliberate choice that the rules governing SEC competition should be made by the leaders of the educational institutions whose students compete under those rules. Through this governance

Defendants' Recruitment of Professional Football Players and Intent to Roster Them

41. In June 2026, the NCAA adopted a new age-based eligibility model, commonly referred to as the "5-for-5" rule, that allows student-athletes up to five seasons of competition within a five-year period beginning when they enroll in college.

42. Beginning in the summer of 2026, certain student-athletes who first enrolled in college in 2022 and had exhausted their eligibility by spring of 2026 (the "2022 Class") began filing lawsuits across the country challenging the NCAA's decision to implement the 5-for-5 rule and not to grant an additional year of eligibility to the 2022 Class. Among those athletes were several former college football players who had signed professional contracts with NFL teams during the 2026 NFL Draft and undrafted free agency period.

43. Despite the SEC's longstanding rules prohibiting professional athletes from returning to college athletics, Defendants saw this as an opportunity to be exploited. They began an orchestrated campaign to recruit professional athletes to join LSU's football roster for the 2026-27 season.

44. These efforts included recruiting players who had signed contracts with the NFL's Cleveland Browns, New Orleans Saints, and Tampa Bay Buccaneers and were actively participating in NFL training camps.

21 Article 6 of the SEC Constitution charges the Chief Executive Officer of each member institution, including LSU, with "full responsibility for enforcing the Constitution, Bylaws, and other rules, regulations, and legislation of the Conference and the NCAA at his or her respective member institution."

The SEC's Professionalism Rules

22 Both the NCAA and the SEC have long maintained rules that prohibit individuals who have entered a professional draft, signed professional contracts, or been rostered on a professional athletics team from competing in college athletics. Among those rules is NCAA Bylaw 12.2.4, which provides that a student-athlete "shall not enter into any kind of agreement to compete in professional athletics, either orally or in writing, regardless of the legal enforceability of that agreement."

Defendants' Recruitment of Professional Athletes

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24 Despite the SEC's longstanding rules prohibiting professional athletes from returning to college athletics, Defendants saw this as an opportunity to be exploited. They began an orchestrated campaign to recruit professional athletes to join LSU's football roster for the 2026-27 season.

25 These efforts included recruiting players who had signed contracts with the NFL's Cleveland Browns, New Orleans Saints, and Tampa Bay Buccaneers and were actively participating in NFL training camps.

26 Defendant Kiffin has publicly confirmed that professional players are now practicing with LSU's football team and that he intends to play them during the upcoming season.

27 On June 24, 2026, following this public reporting, the SEC's Presidents and Chancellors unanimously affirmed the Conference's longstanding position that individuals

its competitions, its brand, its championships, and its media properties with conduct that the Conference has expressly, unanimously, and publicly rejected and repudiated since its inception. Defendants have forced the SEC to associate its athletic competitions and the conduct of the Conference with professional athletes over the express and unanimous objection of every member institution aside from LSU. Such forced association undermines the SEC's identity and purpose and impairs the Conference's ability to express the values it has publicly espoused.

55. The First Amendment protects not only the right to associate with others "in pursuit of a wide variety of political, social, economic, educational, religious, and cultural ends," *Roberts v. U.S. Jaycees*, 468 U.S. 609, 622 (1984), but also the corresponding right not to associate. *Id.* at 623; *see also Wooley v. Maynard*, 430 U.S. 705, 714 (1977) (First Amendment protection "includes both the right to speak freely and the right to refrain from speaking at all"). Where, as here, a group is forced to accept certain members whose conduct is antithetical to the group's viewpoint, that compulsion "may impair the ability of the group to express those views, and only those views, that it intends to express." *Boy Scouts of Am. v. Dale*, 530 U.S. 640, 648 (2000). Defendants' recruitment of, and stated intent to roster, professional athletes in SEC competition, over the express and unanimous objection of every SEC member institution other than LSU, "significantly affect[s]" the SEC's ability to express its longstanding values. *See id.* at 650.

who choose to leave college athletics, sign professional contracts, and compete professionally should not subsequently be permitted to return to college competition.

28 The Presidents and Chancellors explained that allowing professional athletes to compete in college sports would "blur the line between college and professional sports, create significant competitive equity concerns, and reduce opportunities for high school and current college athletes."

The SEC's First Amendment Rights

29 The viewpoints expressed by the SEC as expressed above reflect a core tenet of the Conference's institutional identity. The SEC holds itself out to its student-athletes, its fans, its media partners, and the public as an organization committed to competitive integrity, educational values, and the principle that collegiate athletics is distinct from professional sports.

30 By recruiting professional athletes in contravention of the SEC's longstanding principles and rules and reiterating their intent to add these players to their roster for the 2026-27 football season, Defendants forced the SEC to associate its competitions, its brand, its championships, and its media properties with conduct that the Conference has expressly, unanimously, and publicly rejected and repudiated since its inception. Defendants have forced the SEC to associate its athletic competitions and the conduct of the Conference with professional athletes over the express and unanimous objection of every member institution aside from LSU. Such forced association undermines the SEC's identity and purpose and impairs the Conference's ability to express the values it has publicly espoused.

31 The First Amendment protects not only the right to associate with others "in pursuit of a wide variety of political, social, economic, educational, religious, and cultural ends," Roberts v. U.S. Jaycees, 468 U.S. 609, 622 (1984), but also the corresponding right not to associate. Id. at 623; see also Wooley v. Maynard, 430 U.S. 705, 714 (1977) (First Amendment protection "includes both the right to speak freely and the right to refrain from speaking at all"). Where, as here, a group is forced to accept certain members whose conduct is antithetical to the group's viewpoint, that compulsion "may impair the ability of the group to express those views,

Harm to the SEC

56. Defendants' conduct has caused and continues to cause significant harm to the Conference.

57. Defendants' conduct has infringed the SEC's First Amendment right of expressive association by forcing the Conference to associate itself and its competitions with conduct that it has expressly repudiated.

58. Defendants' conduct has created competitive imbalance among SEC member institutions. LSU's stated intent to roster professional athletes in contravention of the Professionalism Rules, while other institutions have followed the rules and rostered only college athletes, provides an unfair competitive advantage to LSU.

59. Defendants' conduct has disrupted the settled expectations of student-athletes at other SEC institutions who relied on the rules governing roster composition and competitive fairness. Current college athletes who planned their careers around an established set of rules now face the prospect of being displaced by professional athletes.

60. Defendants' conduct has eroded public confidence in the integrity of SEC competition, confidence on which the Conference's brand, its media partnerships, and its educational mission depend.

61. Defendants' conduct has damaged the Conference's ability to fulfill the purpose for which it was created: to maintain intercollegiate athletic programs compatible with the highest standards of education and competitive sports.

62. These harms are ongoing. They will continue for as long as Defendants are free to engage in conduct that contradicts and undermines the Conference's longstanding purpose and mission.

CAUSES OF ACTION

COUNT I

DECLARATORY AND INJUNCTIVE RELIEF BASED ON ACTUAL AND THREATENED VIOLATIONS OF THE FIRST AMENDMENT AND 42 U.S.C. § 1983

(Against All Defendants)

63. The SEC incorporates by reference all allegations in the preceding paragraphs as if fully set forth herein.

64. The First Amendment to the United States Constitution provides that "Congress shall make no law . . . abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble." U.S. CONST. amend. I. The First Amendment is applicable to the States through the Due Process Clause of the Fourteenth Amendment. *Va. State Bd. of Pharmacy v. Va. Citizens Consumer Council, Inc.*, 425 U.S. 748, 749 n.1 (1976).

65. The Supreme Court has "long understood as implicit in the right to engage in activities protected by the First Amendment a corresponding right to associate with others in pursuit of a wide variety of political, social, economic, educational, religious, and cultural ends." *Roberts*, 468 U.S. at 622. "Freedom of association therefore plainly presupposes a freedom not to associate." *Id.* at 623.

deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress." 42 U.S.C. § 1983.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff the Southeastern Conference respectfully requests that this Court enter judgment in its favor and against Defendants, and grant the following relief:

A. Enter a declaratory judgment that the First Amendment protects the Conference's right to disassociate from Defendants' conduct;

B. Enter a preliminary and permanent injunction prohibiting Defendants from violating the Conference's First Amendment rights by compelling the Conference to associate with conduct that is contrary to the Conference's purpose and mission;

C. Enter a preliminary and permanent injunction barring Defendants from seeking to deter, coerce, prevent, or punish the Conference for exercising its First Amendment rights; and

(a) A preliminary and permanent injunction prohibiting Defendants from violating the Conference's First Amendment rights by compelling the Conference to associate with conduct that is contrary to the Conference's purpose and mission;

(b) A preliminary and permanent injunction barring Defendants from seeking to deter, coerce, prevent, or punish the Conference for exercising its First Amendment rights.

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C. Enter a preliminary and permanent injunction barring Defendants from seeking to deter, coerce, prevent, or punish the Conference for exercising its First Amendment rights; and

This the 3rd day of September, 2026.

D. Grant such other and further relief as this Court deems just and proper.

This the 3rd day of September, 2026.

ROBINSON, BRADSHAW & HINSON, P.A.

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